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BIO-PAULITICS

I was once alive apart from the law… (Rom 7: 9)

Those who were not my people/ I will call "my people,"/ and her who was not my beloved/ I will call "my beloved."/ And in the very place where it was said to them, "You are not my people,"/ they will be called "sons of the living God." (Hos 1: 10 qtd. Rom 9: 25-26)

Paul in a Post-Secular Age

After the September 11 terror attacks, religion has reappeared in politics in an unprecedented (for modern times, and even for postmodern times) way. Following Carl Schmitt's famous thesis that "all significant concepts of the modern theory of the state are secularized theological concepts,"[1] one could of course argue that religion had been part of politics all along--that religion never disappeared but merely went underground.[2] Although this position is not exactly a theological one, even if Schmitt was a Catholic, it is certainly not an entirely secular one either. In addition to the term "political theology" with which it is associated, scholars adopting and adapting Schmitt's line of argument have also begun using the term "post-secular" to describe the peculiar episteme of a secularism that would recognize its theological "history" and "structure" (to recall Schmitt's thesis) while nevertheless also remaining different from theology.[3]

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[1] Carl Schmitt, *Political Theology: Four Chapters on the Concept of Sovereignty*, trans. George Schwab (Cambridge: MIT Press, 1985), 36.

[2] Walter Benjamin's first thesis on the philosophy of history captures this situation with the image of a chess-playing puppet—historical materialism—whose hands are being guided by the dwarf of theology hiding inside of it. See Walter Benjamin, "Theses on the Philosophy of History" in *Illuminations: Essays and Reflections*, ed. Hannah Arendt, trans. Harry Zohn. (New York: Schocken, 1968), 253.

[3] To cite just one example, see Eric Santner, "Miracles Happen: Benjamin, Rosenzweig, Freud, and the Matter of the Neighbor", in Slavoj Žižek, Eric Santner and Kenneth Reinhard, *The Neighbor: Three Inquiries in Political Theology* (Chicago: University of Chicago Press, 2005), 76-133.

In what some would understand to be a post-secular age, then, it has become somewhat fashionable to turn towards the letters of Paul as a-for many no doubt surprising-site from where modern power can be resisted.[4] Giorgio Agamben, for example, calls on Paul's messianic universalism to resist the exceptionalist and biopolitical ways in which the *zoe* of the modern subject is saturated by power and produced as "bare life": in Agamben's *The Time That Remains: A Commentary on the Letter to the Romans*, Paul comes to the rescue of a humanity whose embattled, biopolitical situation Agamben so powerfully analyzed in his earlier *Homo Sacer: Sovereign Power and Bare Life*. But can Paul's letters really be mobilized in this way? It is perhaps easy to acknowledge the universalizing aspects of Paul's proposed reforms of Judaism—provided, of course, that one recognizes that this universalization comes about *through faith in Jesus Christ*, a condition that often goes unmentioned, thus producing the false assumption that Paul's universalism would somehow be unconditional.[5] This essay argues, however, that it is more difficult to see how Paul's writings can operate as an effective site of resistance against what Michel Foucault called biopolitics.

In what follows, I explore the hypothesis that Paul's letters develop a notion of faith that, when situated within a biopolitical framework, reveals itself to be a powerful *dispositif* through which power saturates the lives of those belonging to the Pauline community. To say so means merely to explore, from another angle, the hypothesis Foucault develops at length in *Security, Territory, Population*, namely that modern biopolitics finds its origin in the organization of Christian pastoral power.[6] Rather than constructing Paul as a representative of a resistance

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[4] I say "surprising," for what is one to make of this appropriation of Paul in light of passages such as the following: "Let every person be subject to the governing authorities. For there is no authority except from God, and those that exist have been instituted by God. Therefore he who resists the authorities resists what God has appointed, and those who resist will incur judgment" (Rom 13: 1-2). For Paul, at the end of the day, "one must be subject": "For the same reason, you also pay taxes, for the authorities are ministers of God, attending to this very thing" (Rom 13: 5, 6). Paul's "Enlightenment" anticipates, in this respect, that of Immanuel Kant, for whom at the end of the day one must also obey, and pay one's taxes. Cf. Immanuel Kant, "Was ist Aufklärung?" in Michel Foucault, *The Politics of Truth*, ed. Sylvère Lotringer, trans. Lysa Hochroth and Catherine Porter (Los Angeles: Semiotext(e), 2007), 29-37.

[5] In addition, there is the question of Paul's misogyny, which complicates such a reading. See, for example: Simone de Beauvoir, *The Second Sex*, ed. and trans. H.M. Parshley (New York: Vintage Books, 1989), 97-98.

[6] Michel Foucault, *Security, Territory, Population: Lectures at the Collège de France 1977-1978*, ed. Michel Senellart, trans. Graham Burchell (New York: Palgrave, 2007). Foucault's analysis of the pastorate begins in lecture 5 and continues throughout the rest of the book. Although Foucault begins the course by stating he wants to begin to study "something that I have called, somewhat vaguely, bio-power" (p.1) the topic of biopower thus soon gives way to that of the pastorate, in the same way that in the subsequent course *The Birth of Biopolitics*, Foucault's stated intent to "do a course on biopolitics this year" gives way to a course on liberalism and neo-liberalism. See Michel Foucault, *The Birth of Biopolitics: Lectures at the Collège de France 1978-1979*, ed. Michel Senellart, trans. Graham Burchell (New York: Palgrave, 2008), 21. Thus, the

against biopolitics, this essay argues that his writings, which present a transformation or perhaps better an "intensification"[7] of both Old Testament and New Testament power, mark an important development within the history of biopolitics—a history that will be traced back here to Aristotle, and that will thus far exceed biopolitics' otherwise modern history. To uncover such a connection between Paul and biopolitics will mean not only to question the meaning of biopolitics and the traditional genealogies of the term, but also to challenge the contemporary turn to Paul as a militant figure in the struggle against the exceptionalist biopoliticization of life.

Rereading "Power Over Life"

In his book *Bíos: Biopolitics and Philosophy*, Roberto Esposito points out that Foucault did not coin the notion of biopolitics. Instead, it can be traced back, first of all, to early twentieth-century writings on biopolitics; secondly, to a wave of writings on biopolitics dating from the 1960s; and thirdly, to a renewed interest in biopolitics which occurred just before Foucault took up the notion in his 1975-1976 lecture course at the Collège de France entitled "*Society Must Be Defended*".[8] Although Esposito's history lesson is highly instructive, one could also object—and Esposito is very much aware of this—that it risks reducing the multiple readings that the notion of biopolitics allows to a single interpretation that may ultimately be too biological. By tracing the notion of biopolitics back to writings that all in one way or another deal with the relation between biological life and politics, one risks forgetting that the notion of biopolitics in Foucault—which is part of a much larger analysis of governmentality—comes to accommodate much more than mere power over biological life.[9]

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explicit articulation of the relation of these topics to biopolitics is ultimately left up to Foucault's audience.

[7] I take this term from Jeffrey Nealon, *Foucault Beyond Foucault: Power and Its Intensifications since 1984* (Stanford: Stanford University Press, 2008).

[8] Roberto Esposito, *Bíos: Biopolitics and Philosophy*, trans. Timothy Campbell (Minneapolis: University of Minnesota Press, 2008), 13-44.

[9] Of course, when Foucault initially launches the notion in a lecture dating from 1976, it is indeed biological life that is his concern; hence, sexuality and racism—both situated at the crossroads of the body and the population—are the two case studies he develops both at the end of the lecture from 1976 and in the famous fifth section of *The History of Sexuality* entitled "The Right of Death and Power over Life". See Michel Foucault, *"Society Must Be Defended": Lectures at the Collège de France 1975-1976*, ed. Mauro Bertani and Alessandro Fontana, trans. David Macey (New York: Picador, 2003), 239-264; "The Right of Death and Power over Life" in *The History of Sexuality. Vol. 1: An Introduction*, trans. Robert Hurley (New York: Vintage, 1990), 135-159. But from the ways in which Foucault later develops the notion in his courses *Security, Territory, Population* and *The Birth of Biopolitics*, namely by displacing biopolitics onto governmentality and the analysis of the pastorate, liberalism, and neo-liberalism, it becomes clear that he is interested in much more than biological life. Foucault is thinking, instead, about how power saturates the lives of human beings into their most intimate regions, not only those of biology but of everything that in one way or another falls under the slippery term of "life."

One could hardly argue that what Foucault has in mind when he says, towards the end of the second lecture in *Security, Territory, Population*, that biopolitics results in people's "freedom" becoming "nothing else but the correlative of the deployment of apparatuses of security", is merely biological life.[10] He is thinking, rather, of that much more slippery category of "life"—of "living." By "apparatuses of security," he means those "ideologies and techniques of government" that turn life into a mere element in the economy of power.[11] "Security" from the point of view of government is a stable economy of power. Such stability depends, as he explains a year later in *The Birth of Biopolitics*, not so much on the perpetual increase of government but on achieving the proper balance of government—on the question of "how not to govern too much".[12]

As many have noted, the new and according to Foucault typically modern[13] practice of power that is described in these passages operates according to an entirely different dynamic than the power that Foucault analytically distinguishes from it, namely sovereignty. Whereas the latter is concerned with territory, and operates through force by imposing laws on subjects and by opposing itself to an external enemy, biopolitical governmentality is concerned with security, and operates through *laissez-faire*, by economizing the government of the people in such a way that their life becomes barely distinguishable from power. In this second case, the dynamic is no longer one that goes against an external enemy; rather, power strives to account for whatever is abnormal *within* the scope of its domination, by *internally* excluding it from this scope. Whatever diverges from the norm is no longer forcefully subjected to power, but accounted for by power, calculated, anticipated, understood, made part of it *while being allowed to remain abnormal*. It is, in other words, *through its very abnormality* that the life that used to provoke the forceful exercise of power now becomes a part of it, as power's internally excluded element. By consequence, resistance—even though it remains of course possible—risks ultimately only to feed into the power it opposes, as the internally excluded element that can be calculated, anticipated, and understood by a power that aims to be indistinguishable from it and even to operate through it, as resistance's most inner secret or drive.[14]

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[10] Foucault, *Security, Territory, Population*, 48.

[11] Ibid.

[12] Foucault, *The Birth of Biopolitics*, 13.

[13] Note, however, that although Foucault considers this new art of government to emerge in the eighteenth century, he also traces it back (as I have already noted) to the pastoral power of the early Church.

[14] The summary of Foucault that I offer here is much indebted to Nealon's *Foucault Beyond Foucault*. At the risk of anticipating too much, I will already say that I consider the logic of power that is described here to be characteristic of Paul's letters as well. When Paul writes, for example, that "Those who were not my people/ I will call 'my people'" (Rom 9: 25), it is precisely the logic of internal exclusion that the reader confronts. As Paul explains later on in the same letter, if the trespasses of the Gentiles have already brought riches to the world, "how much more will their full inclusion mean!" (Rom 11: 12). One can read the project that Paul proposes here positively, as a project of universalization; but it can also be read negatively, as a universal that operates through internal exclusion or exception. In the latter case, the abnormal is

Unlike the other types of power that Foucault distinguishes from it (most significantly, sovereignty and discipline, which exist in a triangulation with biopolitical governmentality), biopolitics is thus no longer mainly working on a human being's body, soul, or actions, but on the very "life" in which one's body, soul (understood as "the effect and instrument of a political anatomy", as the constructed "prison of the body")[15], and actions participate. Whereas power used to target one's body, soul, and actions, it now considers all of these to merely exist next to something called life, which constitutes the new target of biopolitics. This life is not something that would precede body, soul, and action as a substantial origin, and that as such could be subject to already existing power-techniques such as torture, social reform, or panopticism. It is, rather, something like a potentiality that exceeds them. Life is, one could suggest, Foucault's slippery term for this potentiality. Any attempt to overbiologize this life is ultimately bound to lead to a limited understanding of the notion of biopolitics and of the power over life that it names.

As further evidence for such a reading, it is worth turning to an essay that is not usually read in light of Foucault's work on biopolitics but that addresses concerns that he returned to again and again between 1974 until his death in 1984—in other words: from the period that he was teaching and writing about biopolitics until the moment of his death—namely his essay "What is Enlightenment?". As many have pointed out, Foucault's concern in this essay is with the present, and specifically with a way of thinking the present as fully *actualized*. In French, Foucault uses not only the singular "le présent" to refer to the present, but also the plural "les actualités," literally "the actualities."[16] One way of reading the essay would be to argue that, in response to this actualization of the present, Foucault turns "potentiality" into the defining characteristic of his Enlightenment: the essay insists on the human being's capacity to "separate out, from the contingency that has made us what we are, the possibility of no longer doing, or thinking what we are, do, or think".[17] This negative[18] capacity is characterized at the end of the essay as "an attitude, an ethos, a philosophical *life*".[19] It is this latter term, namely "life," that reveals the essay's relation to Foucault's work on biopolitics. It is in this philosophical life that "freedom"

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appropriated by power in Paul's letters, and resistance becomes power's most inner secret or drive.

[15] See Michel, Foucault, *Discipline and Punish: The Birth of the Prison*, trans. Alan Sheridan (New York: Vintage Books, 1995), 30.

[16] In his lectures dating from 1982-1983 on Immanuel Kant's "Was ist Aufklärung?", Foucault in fact uses "les actualités" much more often than "le présent" to refer to "the present." It is clear in the lectures that in his discussion of the Enlightenment, he is playing with the philosophical contrast between actual and possible, a play that the English translation of Foucault's French risks to erase when it translates both "les actualités" and "le présent" as "the present." See Michel, Foucault, *Le Gouvernement de soi et des autres: Cours au Collège de France 1982-1983* (Paris: Gallimard, 2008).

[17] Foucault, *The Politics of Truth*, 114. John Rajchman makes this point as well in his excellent introduction to *The Politics of Truth* entitled "Enlightenment Today", 9-25.

[18] I use the word "negative" here in the philosophical sense; as will be clear, Foucault values such potentiality positively.

[19] Foucault, *The Politics of Truth*, 118. Emphasis added.

exists; whereas life marks biopolitics' *target*, in the Enlightenment essay it also comes to mark its *limit*.

When Foucault speaks of power over life, he is thus not merely interested in power over biological life, but in a power that actualizes the potential of the human being to such an extent that the human being's very freedom is turned into a mere correlative of power. The fact that "What is Enlightenment?" exists in many different versions, and was thus never fully actualized, can be read as a poetic instantiation of the challenge to biopolitics that the essay raises.[20] With Foucault's notion of life, one finds oneself in the realm of an unfinished potentiality in which body, mind, and action participate. It is this unfinished potentiality that biopolitics is trying to "finish," not so much by positively actualizing it, but rather by reducing this potentiality to a mere element in a stable economy of power, a balance of power that is from the perspective of government "secure." Although Foucault's theorization of biopolitics might begin with the biological, it ultimately moves beyond biology into the theorization of a potentiality called life that constitutes the more-than-biological object of biopolitics. This potentiality marks both the target and the limit of power's relation to life.

From this perspective, and all the while acknowledging the importance of Esposito's history lesson, something nevertheless rings true about the assertion that Foucault "coined" the notion of biopolitics:[21] for he ends up using it in a way that differs from the traditional, biological understanding of the notion to such an extent that, even though one is of course dealing with the same word, one could argue that Foucault in fact coined it anew merely by making the life that is part of its name refer to the realm of potentiality.

The Biopolitics of Faith

This essay sees Foucault's notion of life-which has been glossed here as a negative potentiality in which body, mind, and action participate; and which is both the target and the limit of biopolitics-circulating in Paul's letters as the target and limit of what Paul calls faith. This will no doubt strike a number of readers of Foucault—especially those who adhere to a biological interpretation of biopolitics—as surprising.[22] It may also surprise readers of Paul, given that Paul distinguishes between the flesh and the spirit, and privileges the notion of faith, which he explicitly connects to the spirit, over work, which is connected to the flesh. Nevertheless, if one is willing to abandon both the biological interpretation of biopolitics as well as the assumption that Paul would somehow be rejecting

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[20] Several of these versions have been reproduced Foucault, *The Politics of Truth*.

[21] Although Esposito resists the term "coined," he does write "reproposed and redefined." Esposito, *Bíos*, 13.

[22] It is worth noting, however, that such a statement should not come as a surprise given Foucault's late work in volumes two and three of *The History of Sexuality* on the aesthetico-ethical practices of self-fashioning, the "care of the self." See in particular, Michel, Foucault, *The Care of the Self: The History of Sexuality*, Vol. 3, trans. Robert Hurley (New York: Vintage, 1988).

the realm of the flesh in favor of an exclusive privileging of the spirit, it becomes possible to see how faith in Paul's letters has the same target as Foucauldian biopolitics, namely, life.

Indeed, although Paul clearly works hard to oppose the flesh to the spirit and insists that salvation comes about not through the works of the law but through faith in Jesus Christ (a faith that does not destroy the law but fulfills it), Paul's letters show that he does not reject the flesh or argue that one should abandon works altogether.[23] Instead, he aspires to something like a coincidence of the flesh and spirit-something like an embodied faith. To put it precisely, the letters show that he aspires to a type of work that would not merely be performing the law but that would also be *living* it—the type of work of which one says, in English, that one's "heart" is in it.[24] One can see how Paul's distinction between faith and works practically coincides with that between spirit and flesh, which reveals that Paul is not so much calling for a rejection of the flesh but is aspiring, rather, to a flesh that would have such a close connection to the spirit and to faith that the latter would be acting through them in the same way that one's heart would be in one's work. The aim is for spirit and faith to become actualized in flesh and in works in such a way that Christ's heavenly kingdom becomes realized on earth. Those who have faith die to sin with Christ, but also become alive to God in Christ (see Rom 6:11). Their flesh receives a new destination. This is why Paul can say, in Galatians, that "the life I now live in the flesh I live by faith in the Son of God" (Gal 2:20). Thus, the body will become a "living sacrifice" to God (Rom 12: 1), and one will truly be able to "walk … according to the spirit" (Rom 8:4).

Paul's project is remarkable, both because of the difference it marks from Old Testament Law (see Rom 10:5-13), which through the custom of circumcision was specifically a law that was marked on the body, and from New Testament Law, which, although it preserved the custom of circumcision, emphasized the spiritual over the bodily. It is important to understand that Paul moves beyond both, breaking down (on the one hand) the division between circumcision and uncircumcision through the division between flesh and spirit (as Agamben in his book on Paul discusses at length).[25] According to Paul, one could be circumcised according to the flesh but not according to the spirit, and vice versa, see Rom 2:25-29. On the other hand, Paul also breaks down the very distinction between

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[23] See, for example, the opening lines of *Romans*, in which Paul starkly distinguishes between descending from David according to the flesh, and from Jesus according to the Spirit. Rom 6-8 powerfully elaborates upon this distinction, emphasizing for example that one ought to die in the flesh in order to be resurrected in faith (Rom 6:5) and that nothing good dwells in the flesh (Rom 7:18). What interests me, however, is that this amounts for example in Rom 8:4 in a plea to "walk not according to the flesh but according to the Spirit." Clearly, Paul is not completely overcoming the realm of the flesh here; it is, rather, a matter of walking *in a different way*, according to the spirit.
[24] Indeed, this expression might be Pauline in origin, given Paul's insistence on a circumcision that would be a "matter of the heart" (Rom 2:29).
[25] Cf. Giorgio Agamben, *Homo Sacer: Sovereign Power and Bare Life*, trans. Daniel Heller-Roazen (Stanford: Stanford University Press, 1998), 44-58.

flesh and spirit itself by aspiring to a realm of flesh and works that would coincide with that of spirit and faith. It would do so, however, without becoming completely identical to it, because in this case the dynamic relation between the two sets of distinctions would be destroyed.

One reaches the same conclusions by looking at the way in which "law" operates in Paul's letters in relation to the distinctions between flesh and spirit, and works and faith. By insisting on spirit and on faith, Paul explains, he is not calling for the destruction or abolishment of the law passed on through Moses and Jesus; rather, he is calling for its fulfillment, its completion.[26] As long as the law exists in contradistinction to flesh—in other words, as long as flesh will be performing law rather than actually living it—salvation will remain impossible. Paul insists that one cannot be saved through works alone. It is only when works become inhabited by faith, and come about from a spiritual position of faith, that the flesh will be saved. As will be clear, that does not mean that the distinction between works and faith is abolished. For if the two were to become completely identical, Paul warns, faith would no longer be faith ("otherwise grace would no longer be grace," Rom 11:6) and works would no longer be works, and this would destroy the dynamic relation between both. Paul's project is thus to bring the flesh of the believer in such a close proximity to the realm of spirit and faith that it will become saturated with faith, that everything that is a part of it will come to bear the mark of faith, and will in a sense become faith, all the while preventing such an identification from fully coming about by maintaining a minimal difference between both.[27] That is the difficult wager of Paul's letters, the intervention in the history of theological power that they mark. It is important to remark here, with reference to the eschatological background of Paul's thought, that such a full identification of the two realms *will* ultimately come about; the promise of such an end, which is given the name of "eternal life" in Paul, is from this perspective an intensely biopolitical promise-one that would

[26] It might be necessary to explore here the difference between Mosaic Law and ritual law and its implications for my argument. For the purposes of this essay, however, I will use the term "law" as a stand-in for "power"; I use it, in other words, to refer to a type of *dispositif* that attempts to saturate the people's lives with power. I also understand that such a "political" reading of law ignores the law's functioning (which will only become fully developed in modern times) of protecting the people's lives from power. Such a protection is, however, in itself a structure of power, and what I explore here is the way in which this structure attempts to shape the people's lives, their potentiality, their freedom.

[27] Here lies the significance, I argue, of Paul's statement that "I was once alive apart from law, but then the commandment came, sin revived and I died" (Rom 7:9). Although I will return to this below, one can already see here that Paul insists on a difference between life and law, even though he does so in a letter that aims to bring about an identity between life and the Spirit, which represents another kind of law. Part of my argument is that one cannot have it both ways: to insist on this difference means to challenge the universality of the Spirit, and to insist on the universality of the Spirit means to do away with this difference. This is the key biopolitical tension that I uncover in Paul's letters, the tension through which, as Foucault analyzes at length in *The Birth of Biopolitics*, biopolitics operates.

"complete" the biopolitical project by bringing about the perfect body of faith, the living law.

Although at first sight, Paul's letters seem to revolve around the distinctions between flesh and spirit and works and faith, their real object is thus constituted by a minimal difference that exceeds them, and that Paul's project simultaneously wants to overcome and needs to maintain. It is this minimal difference that is the real object of Paul's insistence on spirit and faith, the site where the difference between "performing" and "living" the law is decided and the struggle for the "fulfillment" or "completion" of the law is played out. This essay suggests that this minimal difference, this excess that escapes both sets of distinctions within which Paul operates, is a predecessor of the potentiality called life that is the target of Foucauldian biopolitics. In the same way that biopolitics aims to saturate a human being's life into its most intimate regions so that its very freedom ultimately becomes no more than a correlative of the deployment of security apparatuses, Paul aims to bring flesh and spirit into such a close proximity that the one would become inhabited by the other and one would no longer "perform" the law but actually "live" it. What Paul cannot escape, however, and this may be why it has been possible to turn him into a militant against biopolitics today,[28] is the minimal difference of life upon which such a fulfillment or completion of the law depends, even though it aims to overcome it. It is this negative potentiality, this "possibility of no longer being, doing, or thinking what we are, do, or think" as Foucault puts it in "What is Enlightenment?", that Paul's biopolitics targets as the potentiality on which it depends and that it simultaneously tries to overcome.

Biopolitics, Faith, "Hexis"

Traditionally, Paul has been read as a reformer of New Testament power. Following in the tracks of Christ who reformed Old Testament Law, Paul brought about an important intensification in Christ's teachings, because he emphasized their universal dimension, which led to the split between Judaism and Christianity. Paul's transformation of Jewish laws is usually understood to be a softening of these laws, because the universal aspect of Paul's letters attenuates these laws' strict rules and regulations in order to make it possible for just about anyone-male, female, master, servant, Jew, Greek, and so on-to become one in Christ. The latter condition-belief in Christ-is not unimportant, because it undermines the supposedly universal dimension of Paul's letters in a significant way: one still has to believe in Christ in order to be part of Paul's universal community.[29] Other than that, however, there are very few

[28] See John Milbank, "Paul Against Biopolitics," *Theory, Culture & Society* 25 (2008), 125-172.

[29] There are, of course, some additional rules related to the life of the community. The main condition for belonging, however, is belief in Christ. Anticipating the argument that I will make in the final section of this essay, one might want to ask: what does it mean to believe in Christ? Paul's letters suggest that it means to participate in Christ's destiny, in his life (see Rom 6, 8). It means, to a certain extent, to become Christ. This is one of the reasons why contemporary readers of Paul can be so quick to forget the

conditions—much less, at least, than under Moses. It is this understanding of Paul's softening of legal prescriptions that is directly responsible for the fact that today, Paul can be constructed as a resistance hero in theoretical works that, even though they borrow heavily from Paul's vocabulary and thought, nevertheless claim to be post-secular or even secular.

In contrast to these traditional understandings of Paul as one who softens Jewish laws, this essay reads the transition from Moses to Christ to Paul as power's "intensification" (see n. 7). Like Foucaultian biopolitics, Paul's insistence on spirit and faith is not so much a softening of the types of power that preceded it, but needs to be understood, rather, as their intensification—an intensification by which theological power no longer operates by forcefully imposing laws upon subjects but through *laissez-faire*, by turning the people's freedom-their life, their potentiality—into a mere correlative of power. From this perspective, Paul marks not only the fulfillment or completion of the law, but also the fulfillment or completion of the law's biopolitical aspiration, its desire to saturate life with power into its most intimate regions, biological and otherwise, thus producing a subject whose life perfectly coincides with the "governing authorities" (see Rom 13:1-7).

Indeed, as a result of Paul's supposed softening of religious law, one no longer has to fulfill a number of requirements in order to become a member of the religious community. The community is supposedly open to all; one does not even have to be circumcised in order to be part of it. Of course, there remains in Paul's letters the important condition of belief in Christ. But it appears that today, for example in the work of Agamben (and even more so in that of Alain Badiou), one does not even need to believe in Christ in order to become a member of the universal community that Paul advocates. From this perspective, contemporary appropriations of Paul might actually represent the fulfillment or completion of the law's biopolitical aspirations, the for now "final" intensification of a type of power that one finds in Paul. The contemporary turn to Paul could thus be considered as an attempt to dismantle the last condition for belonging that is still operative in Paul—belief in Christ (see Gal 3:28)—and thus to make the biopolitics to which Paul's notion of community testifies truly universal (never mind the notion's obvious Christian origins).[30] Thus, the *labor* to

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condition of belief in Christ when they discuss the community that Paul proposes: because it is a condition that this community itself aspires to overcome. Indeed, by becoming Christ "life" would collapse into "law," producing the ideal biopolitical subject, the one that is no longer "alive apart from the law" (Rom 7:9).

[30] Needless to say, Agamben would disagree with such a reading of his work. By casting Agamben's work as the fulfillment or completion of the law's biopolitical aspirations, which culminates in a non-distinction of life and law, I may seem to criticize Agamben precisely for the state of "absolute indistinction" between life and law that he finds in modern times, when "the exception starts to become the rule." (Agamben, *Homo Sacer*, 38.) He represents this situation in *Homo Sacer* as two perfectly overlapping circles. I consider Agamben's project to be to undo this overlapping, and to separate the circles of life and law, in order to insist on their productive relation of struggle. When at the end of his book *The Coming Community*, Agamben insists that "[t]he novelty of the coming politics is that it will no longer be a struggle for the

make the subject "calculable" that Friedrich Nietzsche speaks of *On the Genealogy of Morals* disappears,[31] and one becomes a member of the universal, Pauline community *by the mere fact of living*.[32] This is why Paul can be sure that

> neither death, nor life, nor angels, nor principalities, nor things present, nor things to come, nor powers, nor height, nor depth, nor any thing else in all creation, will be able to separate us from the love of God in Christ Jesus our Lord. (Rom 8:38-39)

That is what the biopolitical dream—or nightmare—of the collapse of life into law amounts to. Even those "who were not my people" will become "my

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conquest or control of the State, but a struggle between the State and the non-State (humanity), an insurmountable disjunction between whatever singularity and the State organization" this seems to be what Agamben has in mind. See Giorgio Agamben, *The Coming* Community, trans. Michael Hardt (Minneapolis: University of Minnesota Press, 1993), 85. However, there are also instances in *The Coming Community* as well as for example in Agamben's book *State of Exception*, where Agamben insists on life's non-relation to law, and to such an extent that his project no longer seems to be to insist on the struggle between the State and humanity, but rather to lose oneself in an idealized community of life that exists beyond any condition of belonging other than the fact of life itself. It is this understanding of community—especially present in the book on Paul—that I resist, because its conception seems to reinstall precisely the overlapping of the two circles—life and law—that Agamben is so critical of. There is a minimal difference of life that Agamben's Pauline vision of community requires the reader to forget, a forgetting that becomes perhaps most visible in its forgetting of the obvious condition of belonging in Paul, namely belief in Christ.

[31] The passage I have in mind is the following: "The task of breeding an animal with the right to make promises evidently embraces and presupposes as a preparatory task that one first *makes* men to a certain degree necessary, uniform, like among like, regular, and consequently calculable. The tremendous labor of what which I have called "morality of mores" … -the labor performed by man upon himself during the greater part of the existence of the human race, his entire *prehistoric* labor, finds in this its meaning, its great justification, notwithstanding the severity, tyranny, stupidity, and idiocy involved in it: with the aid of the morality of mores and the social straitjacket, man was actually *made* calculable." Friedrich Nietzsche, *On the Genealogy of Morals*, trans. Walter Kaufmann and RJ Hollingdale (New York: Vintage Books, 1989), 58-9.

[32] To a certain extent, this problem also characterizes Esposito's work. In contrast to thinkers of the political such as for example Thomas Hobbes, who located the origins of politics in a pre-political state of nature that the institution of a legal and political community allows humanity to overcome, Esposito argues that the Hobbesian legal and political community operates according to a principle of immunity that destroys the pre-political community of (violent) life. For Esposito, a desirable legal and political order lies somewhere in between the immunity and community logic, i.e. at a certain distance from both the "Pauline" community of life that I am criticizing here and the "modern," immunitarian destruction of this community. For a succinct summary of Esposito's thought, see his lecture entitled "Community and Violence." Roberto Esposito, "Community and Violence," in Carolina Lectures in Critical Thought (University of North Carolina at Chapel Hill, 2009). In this essay, I insist on immunity rather than community in order to critique the biopolitical aspects of the contemporary turn to Paul.

people"; even those who were not "beloved" will become "beloved" (Rom 9: 25), and the separation of life and law that Paul earlier in Romans insists on ("I was once alive apart from the law," Rom 7: 9) has become entirely undone. Far from resisting biopolitics, the contemporary turn to Paul would thus appear to fulfill or complete it, in this way exposing a biopolitics in Paul—a *bio-paulitics*—that precedes the modern and is merely going through another stage of its intensification today, and in those very works that claim to oppose it.

This is not to suggest that biopolitics would somehow be Pauline in origin. Paul's insistence on faith as a means of targeting the potentiality of life that biopolitics as well aims to saturate with power, has a classical precedent that allows one to tighten the connections between Foucaultian biopolitics and Paul's notion of faith even more: Aristotle's *Nicomachean Ethics*. Early on in this book, Aristotle confronts an important logical problem in his attempts to answer the question of how one can live a virtuous life. Although at first sight, this problem is not Paul's problem—Paul's key concern is how to become reconciled to God—there is nevertheless a structural parallel between Paul's insistence on faith and Aristotle's solution to the logical problem of virtue. One becomes virtuous, Aristotle argues, by acting virtuously. However, doesn't one already have to be virtuous to a certain extent in order to be able to act virtuously? Not so, according to Aristotle: for one can merely be "performing" virtuous acts without actually "being" virtuous, without actually "living" virtuously. It is a version of this problem that one encounters in Paul: works alone do not make one a good Jew; in order to truly be a good Jew, one needs to have faith. To be circumcised according to the flesh is not enough; one needs to be circumcised according to the spirit as well.[33]

How does Aristotle solve this problem? Not through faith. Instead, he argues that in order for a person to actually "be" virtuous or "live" virtuously when they are doing virtuous actions,

> the agent must also be in a certain condition when he does them; in the first place he must have knowledge, secondly he must choose the acts, and choose them for their own sakes, and thirdly his action must proceed from a firm and unchangeable character.[34]

The difference that Aristotle is trying to close in this passage is the very same one that Paul with his notion of faith is trying to overcome: a difference between spirit and flesh that, no matter how inhabited the flesh becomes by the spirit, cannot be overcome. Faith is Paul's version of what Aristotle refers to as "a certain condition" or, in the sections surrounding this passage, a "state of character": a condition or state that turns virtuous actions into truly virtuous

[33] By this, I do not mean that having faith and receiving the spirit are one and the same. I am simply suggesting that they represent a similar mode of intensification: "works" and "bodily circumcision" are not enough; instead, "faith" and "spiritual circumcision" are required. Power intensifies from power over the body to power over life. It no longer satisfies itself with performance; instead, it targets life itself.

[34] Aristotle, *The Nicomachean Ethics*, trans. David Ross (Oxford: Oxford UP, 1998), 34.

actions, because it overcomes the distance between "performing" and "being" that lies at the root of Aristotle's problem with virtue. This condition or state is able to make the two realms coincide, without, however, making them identical, because this would destroy the difference between performing and being, as well as the dynamic relation between both.

It is here that this essay's argument comes full circle. For the word that Aristotle uses in *The Nicomachean Ethics* for "state of character" is the Greek word *hexis*. This word derives from the verb *ekhein*, which means "to have." According to the *Greek-English Lexicon*, it refers to a kind of "possession" or "being in possession of." With *hexis*, one is talking about a state of possession, a subjective state of being possessed that can almost no longer be distinguished from the subject's being. In addition to a "state or habit of body," the lexicon continues, *hexis* also refers to a "state or habit of mind." By extension, it is also used to refer to an acquired habit or skill, a power acquired by custom, practice, or use. In the latter sense, *hexis* is synonymous with *diathesis*, which is also translated as *habitus* and "disposition".[35]

These latter two translations are highly significant for our argument, because they reveal the connections between the Foucaultian notion of biopolitics and the life that it targets and Aristotle's *hexis* or "state of character." In such a history of power over life ranging from Aristotle to Foucault, Paul represents an important theological intensification of power, since the notion of faith in Paul's letters targets the very same potentiality of life that *hexis* and "biopolitics" are after. To translate *hexis* as "disposition" propels one into a notion that plays a key role in Foucault's work on biopolitics, and that will be the focus of the final section of this essay, namely the notion of the *dispositif* (usually translated as "apparatus," a term that risks to erase the *dispositif*'s relation to "disposition" that is uncovered here).[36]

What is important to note in the preceding discussions of *hexis*, faith, and biopolitics is that although each of these three notions target a potentiality of life in an attempt to actualize it, in other words: in an attempt to overcome the minimal difference upon which this very targeting depends, this attempt must always also (but as minimally as possible) fail, because otherwise the difference between performance and being, works and faith, law and life on which the dynamic of these notions depends, is erased. It is because this failure is to an extent already written into the notion of faith that Paul can be constructed today as a militant in the struggle against biopolitics; for the same reason, the current

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[35] Henry George Liddell and Robert Scott, *A Greek-English Lexicon* (Oxford: Clarendon Press, 1996), 595; 394.

[36] It is interesting that although Paul plays only a minor role in a recent collection of essay by Agamben entitled *What is an Apparatus?* (*Che cos'è un dispositivo?*), this book begins with a detail of Giovanni Serodine's painting *The Apostles Peter and Paul on the Road to Martyrdom*, raising the question of Paul's place in the answer to the question that the collection's title raises. Giorgio Agamben, *What is an Apparatus? And Other Essays*, trans. David Kishik and Stefan Pedatella (Stanford: Stanford University Press, 2009).

intensification of biopolitics has returned attention to the potentiality of life. It is in this context that Agamben's discussion of Aristotle's notion of *hexis* as a "'having' on the basis of which he can also *not* bring his knowledge into actuality (*me energein*) by *not* making a work, for example" (Agamben 1999, 179) becomes highly significant, because it reveals the subversive connections of *hexis* to the negative potentiality that Foucault turns into the characteristic feature of his Enlightenment. If Aristotle stands at the "origin" of the bio-paulitical tradition that I am uncovering, it is an origin that subverts not only itself but also the entire biopolitical history that was to follow.

Works, Not Faith

For Foucault, a *dispositif* is any kind of "thing" through which governmentality, and specifically biopolitics, saturates human life with power. As Agamben notes, Foucault attempts to define this enigmatic notion as:

> a thoroughly heterogeneous set consisting of discourses, institutions, architectural forms, regulatory decisions, laws, administrative measures, scientific statements, philosophical, moral, and philanthropic propositions.[37]

As if this list was not already extensive enough, Agamben later on in his essay "What is an Apparatus?" adds to it even more:

> I shall call an apparatus [dispositivo] literally anything that has in some way the capacity to capture, orient, determine, intercept, model, control, or secure the gestures, behaviors, opinions, or discourses of living beings. Not only, therefore, prisons, madhouses, the panopticon, schools, confession, factories, disciplines, juridical measures, and so forth (whose connection with power is in a certain sense evident), but also the pen, writing, literature, philosophy, agriculture, cigarettes, navigation, computers, cellular telephones and—why not—language itself, which is perhaps the most ancient of apparatuses—one in which thousands and thousands of years ago a primate inadvertently let himself be captured, probably without realizing the consequences that he was about to face.[38]

As definitions, these two lists-and especially the second one-matter, precisely because they push the notion of the *dispositif* towards the uncountable, turning it into a name for "everything" that is "not life," as Agamben sums it up. In addition, this "everything" is characterized by a certain will to power, by a "capacity to capture, orient, determine, intercept, model, control, or secure the gestures, behaviors, opinions, or discourses of living beings." According to Agamben, it is within the distance between life and such powerful *dispositifs* that

[37] Foucault quoted by Agamben, Op. Cit., 2.
[38] Ibid., 14.

the subject is produced. The subject comes into being where the *dispositif*'s will to power over life is played out.

Such a theory of the subject as what comes into being at the site of the struggle for power over life, works particularly well with the discussions of the *dispositifs* of biopolitics, faith, and *hexis* that have been developed above. What Agamben insists on in his essay on the *dispositif* is an essential split between life and law, more precisely between life and everything that in one way or another targets life in an attempt to control it. The problem that was discussed earlier on with respect to Agamben's adaptation of Paul is that in his book on Paul, Agamben runs the risk of forgetting about this split and the struggle that takes place around it, in favor of a messianic conception of community rooted in the simple fact of "living." Far from resisting the *dispositif*'s targeting of life, such a vision of community marks biopolitics' fulfillment or completion by having the notions of life and community enter into a zone of absolute indistinction.[39]

When Agamben includes "philosophy" among the *dispositifs* that he lists, he reveals that he is aware of his own work's will to power over life. The biopolitical question thus abruptly shifts gears and turns from a question about resistance against biopolitics-about biopolitics' possible outside-into a question about any kind of "thing" and its will to power over life. Thus, "the pen, writing, literature, philosophy, agriculture, cigarettes, navigation, computers, cellular telephones" all become part of Agamben's investigation into the biopolitics of the *dispositif*. Even language itself, as the thing that originally removed primates from a state of nature, is inextricably wrapped up in biopolitics, as the original *dispositif* that produced the primates' expulsion from paradise. From this perspective, the question is clearly no longer one of resisting all of these "things" in the hope that one would somehow be able to exist at a safe distance from the *dispositif*, in the realm of life itself. It becomes, rather, a question of how to use *dispositifs* otherwise, from the awareness of the abyss between life and the *dispositif* that Agamben's essay uncovers. Thus, there is a certain freedom—an *ethos*, a "philosophical life," to recall Foucault's Enlightenment essay—that arises from Agamben's self-genealogy and from the ways in which he discovers his own work to be complicit with the power-dynamics he criticizes, a freedom that is not unlike the one Nietzsche discovers in his *On the Genealogy of Morals*.[40] However, at the point when the biopolitical labor to make man calculable that Nietzsche speaks of in *On the Genealogy of Morals* disappears, and the abyss between life and law risks to be erased in an attempt to prevent all struggle in general, a risk that is very much the risk of Agamben's book on Paul, this freedom goes lost and turns into the fulfillment or completion of the biopolitical aspiration.

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[39] Agamben thus rehearses the biopolitical tension that I uncovered in Paul, which can be summarized by the two citations I offer as the epigraphs to this text: on the one hand, Paul insists on life's separation from the law; on the other, his insistence on Spirit goes so far that it risks making that very separation impossible.

[40] See John Richardson, "Nietzsche's Freedoms," in *Nietzsche on Freedom and Autonomy*, ed. Ken Gemes and Simon May (Oxford: Oxford University Press, 2009), 127-150.

All of this leaves one with the question, in closing, of what the "other use"[41] of the *dispositif* that Agamben hints at and presumably aims to practice in his own work as a philosopher, consists of. Like Foucault, who in his essay "What is Enlightenment?" turns the human being's negative capacity to "separate out, from the contingency that has made us what we are, the possibility of no longer being, doing, or thinking what we are, do or think" into the key feature of Enlightenment, and conforms with the subversive, negative reading of the Aristotelian notion of *hexis* that Agamben elsewhere embraces, Agamben insist on a certain type of *negative* genealogy, a certain type of *negative* work that he characterizes throughout his oeuvre as "inoperativity," a practice of unworking or rendering workless. In the book on Paul, he firmly situates this negative work within a Pauline tradition of thinking and practicing not the destruction but the inactivation of the law, its being rendered inactive or workless, in a word: inoperative.[42] One can clearly see here how the negative capacity that Foucault formulates in response to the biopolitical aspiration to actualize the human being—to make men to a certain degree "necessary, uniform, like among like, regular, and consequently calculable," as Nietzsche puts it—risks being reappropriated by a *bio-paulitical* tradition that this essay has traced back to Aristotle. To be sure, this tradition contains the roots of its self-genealogy, of its own deconstruction. But if one accepts Agamben's powerful insights into the *dispositif*'s power over life, it becomes the philosopher's most important task to uncover these roots: to guard against potentiality's appropriation by the biopolitical tradition, against biopolitics' turning this negative capacity into the fulfillment or completion of the law. It is a question of guarding over the very freedom that, as Foucault shows in *The Birth of Biopolitics*, otherwise ends up becoming a mere element in a political economy of government.

From this perspective, it may thus not so much be the "worklessness" of "inoperativity" that should constitute the object of one's research, but precisely the notion that risks falling by the wayside in Paul's letters, namely *work*. What would constitute the work of inoperativity? Given inoperativity, or the negative separation of life and the *dispositif*, what would be inoperativity's "positive" work? What works can follow from it?[43] It may be necessary in this context to insist a little bit more on that other main influence (next to Foucault's work on biopolitics) that Agamben cites in the opening pages of *Homo Sacer*, namely Hannah Arendt's *The Human Condition*. Dissatisfied with how in modern times, all human activity has been reduced to labor, to ways of making a living, Arendt challenges humanity's impoverished understanding of its activities, and

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[41] See Giorgio Agamben, *State of Exception*, trans. Kevin Attell (Chicago: University of Chicago Press, 2005), 64.

[42] See Agamben, *Homo Sacer*, 98.

[43] Agamben himself raises some of these questions in the essay "The Work of Man," trans. Kevin Attell in *Giorgio Agamben: Sovereignty and Life*, ed. Matthew Calarco and Steven DeCaroli (Stanford: Stanford University Press, 2007), 1-10. In this light, the project of a recent collection of essays on Agamben entitled *The Work of Giorgio Agamben: Law, Literature, Life*, ed. Justin Clemens, Nicholas Heron and Alex Murray (Edinburgh: Edinburgh University Press, 2008), also becomes particularly significant.

attempts instead to "think what we are doing".[44] Paul is important for Arendt, precisely because he is not an apostle of the totalization of labor that she criticize,[45] but that does not mean, clearly, that "faith, not works" can be used to sum up Arendt's project. What is at stake, rather, is to think harder-differently-about work.

The point here is not to choose for either works or faith, but to recognize that the hidden target of the Pauline motto "faith, not works" is a potentiality called life that also constitutes the target of the biopolitical will to power. Staging a dialogue between Foucault and Paul, this essay has attempted to uncover this target—and the limit to power that it also poses—in order to rethink what particular theory and practice might be required in response to this biopolitical will to power. This has turned out to be neither work nor worklessness, nor even the messianic *worklessness of work*, but rather *the work of worklessness*, a certain type of doing, saying, thinking, being that emerges from the negative capacity Foucault speaks of in "What is Enlightenment?", and that lies subversively enclosed in Paul's letters and Aristotle's *Nicomachean Ethics*. If language is indeed part of the long list of *dispositifs* that Agamben gives, and possibly the original *dispositif* that marked the primate's entrance into the biopolitical era, the critical project of philosophy cannot be a progress into silence but an exploration of different ways of speaking. For this, Foucault's own late work on practices of truth-telling-and specifically, *parrhesia*-might point the way.[46] Fearless speech would, in this sense, be part of what Foucault, towards the end of his Enlightenment essay calls the "undefined work of freedom" [47]: the "patient labor giving form to our impatience for liberty."[48]

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[44] Hannah Arendt, *The Human Condition* (Chicago: University of Chicago Press, 1998), 5.
[45] Ibid., 316.
[46] See Michel Foucault, *Fearless Speech*, ed. Joseph Pearson (Los Angeles: Semiotext(e), 2001).
[47] Foucault, *The Politics of Truth*, 114.
[48] Ibid., 119.